

That the injunctive order, for violation of which the petitioner was adjudged in contempt, was not void for want of jurisdiction, and could not be ignored or disobeyed with impunity, as an absolute nullity, and is not subject to collateral attack in any form of proceeding, see *Illinois Central v. Adams*, 180 U. S. 28.

As to what matters are open for review upon a writ of *habeas corpus* is likewise a question of procedure; and the principles invoked in the *Adams case* are equally applicable to either question.

The case involves a Federal question sufficient to sustain jurisdiction upon that ground alone.

The penalty provisions of the law attacked are violative of the Fourteenth Amendment; as to this see *Cotting v. Kansas City Stock Yards Company*, 183 U. S. 79, 99-102; *Consolidated Gas Company v. Mayer*, 146 Fed. Rep. 150; *Ex parte Wood*, 155 Fed. Rep. 190.

The rates fixed are confiscatory and the legislation is therefore unconstitutional and void under the Fourteenth Amendment. *Hastings v. Ames*, 68 Fed. Rep. 726.

Neither the suit itself, nor the injunction against petitioner is within the prohibition of the Eleventh Amendment.

The doctrine of *Fitts v. McGhee*, 172 U. S. 516, if held applicable to the facts of the present case, is not supported by any other decision of this court, is inconsistent with the uniform current of authority, and has been overruled by later decisions of this court. *Davis & Farnum Mfg. Co. v. Los Angeles*, 189 U. S. 207, 218; *Dobbins v. Los Angeles*, 195 U. S. 223, 241. *Fitts v. McGhee* is also inconsistent with the subsequent case of *Prout v. Starr*, 188 U. S. 537, and other still more recent cases. The case of *In re Ayers*, 123 U. S. 443, is not in point and does not support the doctrine of *Fitts v. McGhee* in any direct sense.

The distinction between the case of *In re Ayers* and cases like the case at bar has been clearly drawn by this court itself in the case of *Pennoyer v. McConnaughy*, 140 U. S. 1, 9, 10.